CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 14712/05
by Asabali MUSTAFAYEV
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 9 November 2006 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr L. LOUCAIDES,
Mrs F. TULKENS,
Mrs E. STEINER,
Mr K. HAJIYEV,
Mr D. SPIELMANN,
Mr S.E. JEBENS, *judges*,
and Mr S. NIELSEN, *Section Registrar*,

Having regard to the above application lodged on 3 March 2005,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together.

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Asabali Mustafayev, is an Azerbaijani national who was born in 1951 and lives in Sumgayit. The Azerbaijani Government ("the Government") were represented by their Agent, Mr C. Asgarov.

The facts of the case, as submitted by the parties, may be summarised as follows.

The applicant was one of the founders of a public association named "Assistance in the Protection of Citizens' Constitutional Rights"

(*"Vətəndaşların Konstitusiya Hüquqlarının Təminatına Yardım" İctimai Birliyi*). The association was founded on 23 December 2003.

On 3 November 2003 the applicant filed a request for the association's state registration with the Ministry of Justice (hereinafter "the Ministry"), the government authority responsible for the state registration of legal entities. In accordance with the domestic law, a non-governmental organisation acquired the status of a legal entity only upon its state registration by the Ministry.

The new law on state registration, effective from January 2004, required the Ministry to examine the registration documents within a 30-day period from the date of submission. In exceptional circumstances, this period could be officially extended for additional 30 days. However, the Ministry replied to the applicant only on 28 February 2004, returning the registration documents without taking any action, i.e. without issuing a state registration certificate or an official refusal to register the association. The Ministry noted that, contrary to the requirements of Article 131.4 of the Civil Code, the application for state registration had not been certified by a notary public.

The applicant corrected the shortcomings in the registration documents in accordance with the Ministry's comments and re-submitted the registration request on 21 April 2004. This time, although the applicant expected to receive an official response from the Ministry within the statutory ten-day period after the re-submission of the registration documents, he did not receive anything from the Ministry until June 2004.

On 2 June 2004 the applicant filed a lawsuit against the Ministry with the Yasamal District Court, complaining of the latter's failure to reply to the registration request in a timely manner.

On 29 June 2004, while the case was still pending before the court, the Ministry sent a letter to the applicant, notifying him that the period for examination of the registration documents had been extended for 30 additional days. At a hearing on 12 July 2004, the Ministry's representative asked the court to suspend the proceedings until the Ministry completed the examination of the applicant's registration request and issued an official decision. The Yasamal District Court granted the Ministry's request.

On 3 August 2004 Ministry again returned the registration documents to the applicant, noting that, contrary to the requirements of Article 13.1 of the Law *On Non-Governmental Organisations*, the association's charter did not specify the terms and conditions of terminating the membership in the association. Moreover, contrary to the requirements of Article 130 of the Civil Code, the association's charter did not contain any provisions concerning the association's fiscal year.

On 17 August 2004 the Yasamal District Court examined the applicant's claim against the Ministry and dismissed it. The court found the association's charter had not been drafted in accordance with the

requirements of the domestic law and, therefore, the Ministry's refusal to register the association was lawful.

On 12 October 2004 the Court of Appeal upheld the first-instance judgment. On 22 December 2004 the Supreme Court upheld the lower courts' judgments.

In the meantime, the applicant re-drafted the association's charter and re-submitted the registration request. On 30 June 2006 the Ministry of Justice registered the association under its new name "Democracy and Human Rights Resource Centre" ("*Demokratiya və İnsan Hüquqları Resurs Mərkəzi*").

COMPLAINTS

1. The applicant complained under Articles 10 and 11 of the Convention that the failure by the Ministry of Justice to register the association in a timely manner constituted an interference with his freedom of association.

2. The applicant also complained under Article 6 of the Convention that the domestic courts had not been independent and impartial and that they had erred in assessing the facts of the case and misapplied the domestic law.

THE LAW

The Court notes that on 31 July 2006 the applicant sent a letter informing the Court of his wish to withdraw the application due to the fact that the public association had been registered by the Ministry of Justice.

In these circumstances, the Court finds that the applicant no longer intends to pursue his application before the Court within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, the Court finds no reasons of a general character, as defined in Article 37 § 1 *in fine*, which would require the examination of the application by virtue of that Article.

Accordingly, Article 29 § 3 of the Convention should no longer apply to the case and it should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Søren NIELSEN
Registrar

Christos ROZAKIS
President